

Court No. - 3

Case :- WRIT - C No. - 6111 of 2022

Petitioner :- Satish Shukla

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Arvind Singh

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard Sri Arvind Singh, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Sushil Kumar Pandey, learned counsel for the respondent No.2.

This writ petition has been filed praying for the following relief:

"(i) issue a writ, order or direction in the nature of certiorari quashing the impugned recovery notice dated 23.11.2021 (Annexure No.1 to the writ petition) issued by respondent no.2;

(ii) issue a writ, order or direction in the nature of mandamus directing the respondent no.2 to consider and decide the reply submitted by petitioner on 10.12.2021, and provided domestic electricity domestic connection in the house of petitioner for using electricity;

(iii) issue a writ, order or direction in the nature of mandamus directing the respondent no.2 to kept impugned notice dated 23.11.2021 in abeyance till decision on the reply submitted by petitioner on dated 10.12.2021;"

Sri Sushil Kumar Pandey, learned counsel for the respondent No.2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.2, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 25.5.2022

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